

Question bank

KHULA

Wife (Petitioner)

#	Question	Answer	Law Reference
1	What is Khula?	A judicial dissolution of marriage at the wife's instance, where she agrees to forgo or return Haq Mehr or other consideration, on the ground that the marriage cannot continue within the limits prescribed by Allah — that is, an inability to live together harmoniously.	DMMA 1939, applied through the procedural overlay of the Family Courts Act; Mst. Khurshid Bibi v Baboo Muhammad Amin, PLD 1967 SC 97
2	Does the wife need to prove fault or cruelty by the husband to obtain Khula?	No. Courts have held that if the wife satisfies the court that she cannot live with the husband within the limits prescribed by Allah, Khula can be granted even without proof of fault, though she typically must return the Haq Mehr.	PLD 1967 SC 97; Family Courts Act 1964, s.10(4)
3	Which forum handles Khula suits?	The Family Court, through a suit for dissolution of marriage.	Family Courts Act 1964, Schedule
4	Is pre-suit reconciliation or mediation mandatory before Khula is decreed?	Yes. The Family Court must attempt pre-trial reconciliation; if it fails, the court proceeds to grant Khula, typically without further prolonged trial once reconciliation efforts fail.	Family Courts Act 1964, s.10; s.12A, as amended for time-bound disposal
5	Does the wife forfeit her Haq Mehr in Khula?	Generally yes, as consideration for the Khula, unless the court in its discretion, given the specific facts, directs otherwise.	DMMA principles; PLD 1967 SC 97; case-specific Family Court orders
6	If a wife sues for dissolution on the ground of cruelty or non-maintenance under the	No. The Supreme Court has held that a court cannot convert a DMMA suit into a khula decree in the absence of a clear and	Naila Javed v Nasir Khan (Supreme Court of Pakistan, 2026); Dissolution

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	DMMA but fails to prove cruelty, can the Family Court simply convert her suit into a khula decree on its own?	unequivocal election by the wife. Where cruelty is not proved but the marriage has manifestly broken down, the court must give the wife the opportunity to elect between pursuing her original claim or accepting dissolution by khula on lawful terms, and draw a fresh decree based on that election.	of Muslim Marriages Act 1939
7	Does electing khula automatically mean the wife forfeits dower already proven unpaid on other grounds, such as cruelty or an unauthorised second marriage?	Not automatically. If a wife succeeds on an independent ground such as cruelty, she is entitled to a decree on that ground with her dower intact, rather than being confined to khula on forfeiture terms; the two are legally distinct pathways with different consequences for dower.	Naila Javed v Nasir Khan (Supreme Court of Pakistan, 2026); DMMA 1939, s.2
8	Is restitution of the dower an indispensable condition for a khula decree to be valid?	No. Non-restoration of dower or other benefits does not affect the validity of the khula decree itself; if the court finds the wife entitled to khula, it must grant the decree, with the question of restoring mutual benefits decided separately as a civil liability on the facts of the case.	PLD 2006 Karachi 563
9	Can a wife withdraw a khula suit after filing but before decree?	Yes, in principle a plaintiff may withdraw a suit before decree, subject to the court's leave and any conditions it imposes, such as costs; however, once the Arbitration Council or Family Court proceedings have reached an advanced reconciliation stage, courts are cautious about repeated withdrawal and re-filing, and may take the litigation	Family Courts Act 1964, s.10; general principles under the Code of Civil Procedure 1908, Order XXIII, as applied

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		history into account in a subsequent suit.	

Husband (Respondent)

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1	Can the husband refuse to consent to Khula?	His consent is not required. Courts can grant Khula as a judicial decree even against the husband's wishes if the statutory and jurisprudential test is met.	PLD 1967 SC 97
2	Can the husband claim the return of gifts or dowry given during the marriage in the Khula suit?	He may raise a counterclaim, or a separate suit, for recovery of dowry articles or specific gifts, subject to proof.	Family Courts Act 1964, Schedule; general civil law of recovery
3	Is the husband entitled to a hearing before Khula is decreed?	Yes. Ordinary suit procedure applies — written statement, evidence, arguments — before a decree, though courts increasingly decide such suits swiftly, especially after failed reconciliation.	Family Courts Act 1964, s.10, s.12A
4	Can the husband appeal a khula decree by arguing the wife's election was coerced by her family?	No ordinary appeal lies against a decree for dissolution of marriage granted on the ground of khula; the statutory bar is treated as near-absolute by the superior courts, leaving only a constitutional petition on very limited jurisdictional grounds.	Family Courts Act 1964, s.14(2)

Family Court Judge

#	Question	Answer	Law Reference
1	What is the statutory timeline for deciding a Khula suit?	Family Courts are directed to decide suits, particularly for dissolution, expeditiously, with amendments in various provinces requiring disposal within a defined period, commonly around four to six months, varying by province.	Family Courts Act 1964, s.12A, as amended by the provincial legislatures
2	Can the Family Court order the wife to return	Yes. The decree can direct restitution of the Haq Mehr or benefits received	PLD 1967 SC 97; DMMA principles

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	Haq Mehr as a condition of the Khula decree?	as a condition, consistent with Khula being treated as a release purchased by the wife.	
3	Is pre-trial reconciliation still mandatory in a khula suit if the parties have already lived separately for years?	Yes. The reconciliation requirement is a mandatory procedural step regardless of the length of separation, though courts move promptly to decree khula once reconciliation efforts genuinely fail and the wife's election is clear.	Family Courts Act 1964, s.10

Advocate / Lawyer, Chairman / Secretary of the Union Council, NADRA Officer (Secondary)

#	Question	Answer	Law Reference
1	Is registration with the Union Council required after a Khula decree?	Yes. A certified copy of the Khula decree is typically sent by the Family Court to the Union Council or NADRA to update marital-status records, in a manner similar to the Talaq notice procedure.	Family Courts Act 1964, s.10(4), as amended and deemed to operate as Talaq for notice purposes in several provincial amendments; MFLO 1961, s.7
2	Can a lawyer appeal a Khula decree?	Appeal rights are restricted for dissolution decrees in several provinces following amendment, and no appeal lies against a Khula decree in certain jurisdictions, though revision may lie in some cases; this varies by province and should be checked against the applicable amended statute.	Family Courts Act 1964, s.14, as amended by the respective provinces